

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nora Stephens	Team: Squad #11	CCRB Case #: 201601223	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/09/2016 3:55 PM	Location of Incident: Riverdale Avenue and Watkins Street	18 Mo. SOL 8/9/2017	Precinct: 73		
Date/Time CV Reported Tue, 02/09/2016 4:34 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/16/2016 10:50 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Thomas Mannion	19523	958869	073 PCT
2. POM Wilfredo Cruz	13552	941604	073 PCT
3. POM Mohammed Hotaky	17377	958708	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Wilfredo Cruz	Abuse: PO Wilfredo Cruz refused to provide his name and shield number to § 87(2)(b)	A . Unsubstantiated
B . POM Wilfredo Cruz	Abuse: PO Wilfredo Cruz threatened to arrest § 87(2)(b)	B . Unsubstantiated
C . POM Wilfredo Cruz	Discourtesy: PO Wilfredo Cruz acted discourteously toward § 87(2)(b)	C . Unsubstantiated
D . POM Thomas Mannion	Abuse: PO Thomas Mannion refused to provide his name and shield number to § 87(2)(b)	D . Unsubstantiated
E . POM Mohammed Hotaky	Abuse: PO Mohammed Hotaky refused to provide his name and shield number to § 87(2)(b)	E . Unsubstantiated

Case Summary

On February 9, 2016, at approximately 3:55 p.m., § 87(2)(b) was driving his friend, § 87(2)(b) (last name unknown), who was sitting in the front passenger seat, and her unidentified son, who was sitting in the backseat, when § 87(2)(b)'s vehicle was pulled over near the corner of Riverdale Avenue and Watkins Street in Brooklyn. PO Wilfredo Cruz, PO Thomas Mannion, and PO Mohammed Hotaky, all of the 73rd Precinct, approached § 87(2)(b)'s vehicle. PO Cruz took § 87(2)(b)'s license, insurance, and registration, and then all three officers walked back and entered the police vehicle. After approximately thirty minutes, PO Cruz returned to § 87(2)(b)'s front driver's side and PO Mannion and PO Hotaky stood by § 87(2)(b)'s front passenger side. PO Cruz attempted to give § 87(2)(b) his summonses, but § 87(2)(b) refused and asked PO Cruz for his name and shield number. PO Cruz stated that his information was on the summonses, which were actually written by PO Mannion (**Allegation A**). As PO Cruz began to walk away, § 87(2)(b) exited his vehicle. § 87(2)(b) asked loudly if he could speak with PO Cruz. PO Cruz responded, "You get loud? I will lock you up" (**Allegation B**). PO Cruz then walked back over to § 87(2)(b)'s vehicle and threw § 87(2)(b)'s license, registration, insurance, and two summonses through his front driver's side window (**Allegation C**). § 87(2)(b) asked PO Cruz for his name and shield number. PO Cruz spoke in a hushed tone as he walked away, so § 87(2)(b) could not hear everything said by PO Cruz, so § 87(2)(b) asked PO Cruz if he could take a photo of him. PO Cruz told him, "Go ahead, take all the pictures you want." § 87(2)(b) then took a photo of PO Cruz in which his name was clearly visible. § 87(2)(b) asked PO Mannion for his name and shield number and PO Mannion looked at him, indicating to § 87(2)(b) that he had heard him, but PO Mannion did not respond, but also allowed his photograph to be taken (**Allegation D**). § 87(2)(b) approached PO Hotaky and asked for his name and shield number, but PO Hotaky did not respond to § 87(2)(b)'s request, and turned his shoulder when § 87(2)(b) took his photograph (**Allegation E**) (Board Review 11). § 87(2)(b) received two summonses: one for § 87(2)(b) (Board Review 10).

There is no video footage in this case.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- The case was returned from the Mediation Unit to the Investigative Unit because § 87(2)(b) decided he wanted the case investigated.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- As of May 24, 2016, § 87(2)(b) had not filed a Notice of Claim (Board Review 8).

Civilian and Officer CCRB Histories

- § 87(2)(b) has two previous complaints with the CCRB. § 87(2)(b)
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§ 87(2)(b)
- PO Cruz has been a member of service for nine years. He has been a subject in three total CCRB cases with eight allegations. No allegations have been substantiated against him § 87(2)(g).
- PO Mannion has been a member of service for less than one year. This is the first complaint in which he has been a subject.
- PO Hotaky has been a member of service for less than one year. This is the first complaint in which he has been a subject.

Allegation A – Abuse of Authority: PO Wilfredo Cruz refused to provide his name and shield number to § 87(2)(b)

Allegation D – Abuse of Authority: PO Thomas Mannion refused to provide his name and shield number to § 87(2)(b)

Allegation E – Abuse of Authority: PO Mohammed Hotaky refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) stated that when PO Cruz presented the summonses written by PO Mannion (Board Review 10), § 87(2)(b) did not take them. § 87(2)(b) asked PO Cruz if he could have the name and shield number of PO Cruz, PO Mannion, and PO Hotaky. PO Cruz responded that his shield number was on the ticket. § 87(2)(b) asked if he could step out of his car and speak to PO Cruz, who said he did not need to speak with § 87(2)(b). § 87(2)(b) stated in his verified interview that PO Cruz then started walking away from the vehicle, and said his name and shield number aloud. In a follow-up phone statement, § 87(2)(b) stated that when he was later speaking to PO Cruz outside of the vehicle, he asked PO Cruz for his information, which PO Cruz stated under his voice as he walked away. § 87(2)(b) could not hear what he said and asked PO Cruz if he could take his photograph. PO Cruz told him, “Go ahead, take all the pictures you want.” § 87(2)(b) took a photo of PO Cruz’s nametag. § 87(2)(b) explained in his verified interview that prior to taking the photo, PO Cruz acknowledged that he did not write the tickets, one of his partners did. § 87(2)(b) stated in his follow-up phone call that he then asked PO Mannion for his name and shield number, and PO Mannion did not respond, but allowed § 87(2)(b) to take a photograph, which showed his nametag. § 87(2)(b) asked PO Hotaky for his name and shield number. PO Hotaky did not respond, and turned his body when § 87(2)(b) attempted to photograph him. § 87(2)(b) did not provide the names of PO Cruz and PO Mannion when he filed his complaint, and provided the photo of PO Hotaky turned to the side when he filed his complaint (Board Review 11) (Board Review 1, Board Review 2).

§ 87(2)(b) did not know the full name of § 87(2)(b) nor did he have any contact information for her.
§ 87(2)(g)

PO Cruz stated that he never told § 87(2)(b) that he had written the summonses. PO Cruz explained why § 87(2)(b) received the summonses and the process he needed to follow to comply with the summonses. § 87(2)(b) asked for PO Cruz's name and shield, and PO Cruz said his name and shield number while he was still at the car. PO Cruz thought § 87(2)(b) would have been able to hear him. PO Cruz then walked away from § 87(2)(b)'s vehicle, as did PO Mannion and PO Hotaky. After less than a minute, § 87(2)(b) exited his vehicle and walked over to PO Cruz who was now standing by the front of the police vehicle. PO Cruz, PO Hotaky, and PO Mannion all turned around and PO Cruz told § 87(2)(b) to get back into his vehicle and that he was putting them on edge. § 87(2)(b) had his cell phone with him and screamed that it was harassment and he wanted each officer's shield number and name. § 87(2)(b) stood about seven or eight feet away from PO Cruz, PO Hotaky was about two feet away from § 87(2)(b)'s right, and PO Mannion was approximately three feet away from his left. § 87(2)(b) asked PO Mannion and PO Hotaky for their names and shield numbers and PO Cruz heard PO Mannion first say his name and shield aloud and then PO Hotaky said his name and shield aloud. PO Cruz remembered that PO Hotaky spelled out his name aloud for § 87(2)(b). PO Cruz recalled that § 87(2)(b) had his phone out and was saying aloud the officers' names and the RMP number as if he was recording a video. § 87(2)(b) walked back to his vehicle and then drove away (Board Review 03).

PO Mannion stated that PO Cruz explained to § 87(2)(b) several times why § 87(2)(b) was receiving the summonses, and § 87(2)(b) said that PO Cruz was harassing him. PO Cruz, PO Mannion, and PO Hotaky started to walk back to the police vehicle, and were standing near the police vehicle when § 87(2)(b) flung his door open, exited his vehicle and screamed that the officers were harassing him and that he wanted their names and shields. § 87(2)(b) walked quickly toward the officers, while holding his cell phone out, and the officers told § 87(2)(b) to stay where he was. PO Mannion did not recall the exact order of when each officer said their names and shield numbers, but he knew that each officer said this information aloud, and PO Mannion and PO Hotaky spelled their names (Board Review 04).

PO Hotaky stated that when he, PO Cruz, and PO Mannion began to walk back to the police vehicle, after providing the summonses, § 87(2)(b) then exited his vehicle, and while holding his cell phone out, told the officers that they were harassing him. § 87(2)(b) stood by his vehicle approximately 5-8 feet away from where PO Hotaky was standing, to the left of the police vehicle. § 87(2)(b) asked for PO Hotaky's name and shield number. PO Hotaky stated his information and spelled his name aloud at least two times. PO Hotaky did not recall if § 87(2)(b) asked for the names and shield numbers of PO Cruz and PO Mannion, but PO Mannion said his name and shield number aloud for § 87(2)(b). PO Hotaky did not recall if PO Cruz provided his information (Board Review 05).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A, D, and E** be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: PO Wilfredo Cruz threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that when PO Cruz asked for § 87(2)(b)'s license and registration, § 87(2)(b) asked why he was pulled over. PO Cruz stated that when § 87(2)(b) provided his license, PO Cruz would inform § 87(2)(b) why he was pulled over. § 87(2)(b) provided his license, insurance, and registration, and the officers returned to the vehicle. After 2-3 minutes, PO Cruz returned to § 87(2)(b)'s vehicle and asked § 87(2)(b) if he was driving a taxi. § 87(2)(b) responded, "What kind of question is that?" PO Cruz asked § 87(2)(b) for his name. § 87(2)(b) asked why PO Cruz needed his name since he had provided his license. PO Cruz responded, "I will lock you up if your license is not clean." § 87(2)(b) responded that PO Cruz could do his job and he would patiently wait. PO Cruz returned to the police vehicle. When PO Cruz returned and presented § 87(2)(b)'s summonses, § 87(2)(b) did not take the summonses because he wanted to speak to PO Cruz.

§ 87(2)(b) acknowledged that when he exited his vehicle, he spoke very loudly because he was trying to get the attention of people inside the surrounding homes. § 87(2)(b) said loudly, "Officer, why can't you speak to me?" PO Cruz responded, "You get loud? I will lock you up." (Board Review 1).

PO Cruz stated that when he first approached § 87(2)(b) PO Cruz asked § 87(2)(b) to roll down his back passenger's side window, so that PO Mannion could speak with the woman and child in the back seat. § 87(2)(b) did not comply and PO Cruz had to ask him approximately five times to roll down his back passenger's side window. § 87(2)(b) screamed at PO Cruz from the moment PO Cruz first approached him. § 87(2)(b) continually said that PO Cruz was harassing him and that he knew the people in his vehicle. After his back passenger's side window was rolled down, § 87(2)(b) continued to tell PO Cruz that the passengers knew him. PO Cruz could not hear the conversation between PO Mannion and the passengers because § 87(2)(b) was screaming at PO Cruz. PO Cruz asked for § 87(2)(b)'s license, insurance, and registration, and if he had a hack license, to provide that as well. § 87(2)(b) screamed at PO Cruz and told PO Cruz that he was harassing him; § 87(2)(b) used profanity while speaking with PO Cruz. PO Cruz explained to § 87(2)(b) that he could be arrested if he did not cooperate with the command to provide his credentials. PO Cruz could have arrested § 87(2)(b) for failing to obey police authority; this instance was the only point during the entire incident when PO Cruz explained to § 87(2)(b) that he could have been arrested. PO Cruz then asked for his credentials again. § 87(2)(b) screamed to PO Cruz that he was harassing him. PO Cruz told § 87(2)(b) that he was not harassing him he was doing his job as a police officer. PO Cruz had to ask § 87(2)(b) for his license, registration, and insurance approximately three times before § 87(2)(b) provided them. § 87(2)(b) retrieved the documents from his glove compartment and wallet. At no point during the incident did PO Cruz say, "I will lock you up if your license is not clean." Later, after § 87(2)(b) exited the vehicle, PO Cruz told § 87(2)(b) multiple times that the officers were not harassing him, that they were doing

their jobs as police officers and § 87(2)(b) violated the law. PO Cruz explained that § 87(2)(b) had broken the law by having an unlicensed TLC vehicle and driving as an unlicensed TLC operator approximately five times total. At no point did PO Cruz say, “You get loud I will lock you up (Board Review 03).”

PO Mannion and PO Hotaky also stated that § 87(2)(b) was not compliant and PO Cruz had to ask § 87(2)(b) multiple times for his license, insurance, registration and hack license, and eventually explained that § 87(2)(b) would be arrested if he did not provide the information, before § 87(2)(b) provided these items. At no point did PO Mannion or PO Hotaky hear PO Cruz or any other officer say, “You get loud, I will lock you up” or “I will lock you up if your license is not clean (Board Review 04 and Board Review 05).” PO Mannion also stated that after writing the summonses, PO Mannion gave the summonses to PO Cruz because PO Mannion was a new officer and § 87(2)(b) had been angry when PO Cruz had initially spoken with him (Board Review 04).

Penal Law code § 195.05 states that a person is guilty of obstructing governmental administration when he intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function (Board Review 7).

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C – Discourtesy: PO Wilfredo Cruz acted discourteously toward § 87(2)(b)

§ 87(2)(b) stated that when he asked who wrote the ticket, PO Cruz stated that he did not write his ticket, and that one of his partners did. PO Cruz then walked over to § 87(2)(b)'s car and threw § 87(2)(b)'s license, registration, and insurance into § 87(2)(b)'s front driver's side window and they landed on the floor of the vehicle. PO Cruz also threw the two summonses, which landed on § 87(2)(b)'s front driver's side seat (Board Review 01).

PO Cruz stated that when he returned to the vehicle with the summonses, § 87(2)(b) said that the officers were harassing him and that it was not the last time the officers would hear from him. PO Cruz told § 87(2)(b) that the officers were not harassing him and that he was operating his vehicle with passengers in the back and he is not registered with TLC as an operator and his vehicle is not registered with TLC. PO Cruz told § 87(2)(b) to relax and § 87(2)(b) continued to yell and say that the officers were harassing him. Through the open front driver's side window, PO Cruz handed § 87(2)(b) the two summonses, his license, registration, and insurance. § 87(2)(b) received all of these items in his hand. PO Cruz did not recall exactly what § 87(2)(b) did with these items, but he thought § 87(2)(b) might have placed them on the front passenger's seat. PO Cruz never threw the

summonses, license, registration, or insurance through § 87(2)(b)'s front driver's side window, nor did any other officer do this (Board Review 03).

PO Hotaky stated that PO Cruz gave § 87(2)(b) the two summonses and his license and other documents. PO Hotaky never saw PO Cruz throw the summonses at § 87(2)(b) nor did he see § 87(2)(b) throw the summonses anywhere (Board Review 05).

PO Mannion did not recall § 87(2)(b) refusing to take the summonses, license, registration, and insurance from PO Cruz, and never saw PO Cruz or another officer throw the summonses at § 87(2)(b). PO Mannion did not see what § 87(2)(b) did with the two summonses (Board Review 04).

§ 87(2)(g)
It is therefore recommended that **Allegations C** be closed as **unsubstantiated**.

Squad: 11

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date